

Vijay Kumar Sachan v. State of U.P. And Another

Allahabad High Court · Division Bench · 4 April 2018 · AIRONLINE 2018 ALL 3033 · Application U/S 482 No. 11021 of 2018 · **s.482 Cr.P.C. application dismissed; charge sheet not quashed**

HEADNOTE

Not a Supply Code case — a s.482 Cr.P.C. quashing application by a retired electricity department Junior Engineer against a Prevention of Corruption Act disproportionate-assets charge sheet, applying the settled R.P. Kapur/Bhajan Lal/P.P. Sharma/Zandu Pharmaceutical framework confining s.482 quashing to cases where no offence is disclosed on the face of the record, and declining to adjudicate disputed factual defences (agricultural income, family gifts) at the quashing stage. Recorded compactly given the absence of any Supply Code nexus (the applicant's former employment as a Junior Engineer in the electricity distribution department is incidental background, not a subject of adjudication).

HOLDING-UNITS

INTERPLAY · OFFTOPIC::disproportionate-assets-quashing-electricity-employee

A s.482 Cr.P.C. application to quash a disproportionate-assets charge sheet is dismissed where the defence (agricultural land income, family gifts explaining the excess assets) raises disputed questions of fact not resolvable at the quashing stage

HOLDING

Application dismissed. Applying R.P. Kapur v. State of Punjab, State of Haryana v. Bhajan Lal, State of Bihar v. P.P. Sharma, and Zandu Pharmaceutical Works Ltd. v. Mohd. Sharaful Haq, the Court held that at the s.482 stage only a prima facie case need be examined, and the applicant's explanations (agricultural income from family land, gifts from a retired father) for the alleged disproportionate assets (Rs. 31,66,841) were disputed questions of fact requiring evidence, not resolvable on a quashing application; the Court left it open to the applicant to raise his health condition (kidney ailment requiring dialysis) before the trial court in any future bail application. ¶ [unnumbered order \(full text\)](#)

FLAG Recorded compactly given its criminal-procedure/PC Act disproportionate-assets subject matter and absence of Supply Code nexus; the applicant's former employment in the electricity department is incidental background only.

PRINCIPLE TAGS

disproportionate-assets-quashing-electricity-employee Not a Supply Code case — a s.482 Cr.P.C. quashing application by a retired electricity department Junior Engineer against a Prevention of Corruption Act disproportionate-assets charge sheet, applying the settled R.P. Kapur/Bhajan Lal/P.P.. ¶ [unnumbered order \(full text\)](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DISPROPORTIONATE-ASSETS ALLEGATION AND THE APPLICANT'S FACTUAL DEFENCES

Left for trial; the Court expressly declined to adjudicate disputed questions of fact at the s.482 stage. ¶ [unnumbered order](#)

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>R.P. Kapur v. State of Punjab</i> AIR 1960 SC 866 [1033301] Supreme Court	Sets out the settled categories of cases in which the High Court's inherent power under s.482 Cr.P.C. may be exercised to quash criminal proceedings.	Applied.	Court	Followed
<i>State of Bihar v. P.P. Sharma</i> 1992 SCC (Cri) 192	Reaffirms the limited scope of s.482 Cr.P.C. quashing, confined to cases where no offence is	Applied.	Court	Followed

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
[1287305] Supreme Court	disclosed on the face of the record.			
<i>Zandu Pharmaceutical Works Ltd. v. Mohd. Sharaful Haq</i> 2005 SCC (Cri) 283 [279427] Supreme Court	At the quashing stage, only a prima facie case is to be examined; disputed factual questions must go to trial.	Applied.	Court	Followed

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.